

## 26STCV16337 26STCV16337

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-01

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Case Number: 26STCV16337 Hearing Date: September 1, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING DATE: September 2, 2026 TRIAL DATE: Not set.

CASE: Crockett v. Vermont CA Gardens, LP, et al.

CASE NO.: 26STCV16337

DEMURRER TO COMPLAINT

MOTION TO STRIKE PORTIONS OF COMPLAINT

MOVING PARTY/PARTIES: Defendant Metropolis Technologies Inc.

RESPONDING PARTY/PARTIES: Plaintiff Rasheda Crockett

PROOF OF SERVICE:

· Plaintiff addresses the merits of Defendant's motions, and thereby waived any procedural objections. (See In re Marriage of Falcone (2008) 164 Cal.App.4th 814, 826.)

CASE HISTORY:

· May 21, 2026: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Rasheda Crockett ("Plaintiff") sued Defendant Metropolis Technologies Inc. ("Defendant") based on the theft of Plaintiff's vehicle from a parking garage. Plaintiff alleges that Defendant "assumed responsibility for parking operations" at the parking garage where Plaintiff parked her vehicle at the time of the theft. (Complaint, ¶ 9.) Plaintiff alleges that Defendant changed the security system for the parking garage from a transponder-based system to a camera-based system. (Complaint, ¶ 21.) Plaintiff alleges, "The transition created a foreseeable and dangerous security vacuum in the parking garage. By deactivating the existing transponder-based access control system on August 15, 2025 and replacing it with Metropolis's camera-based technology, Defendants created a critical window during which the legacy security system was disabled but the new system was not fully operational." (Complaint, ¶ 23.) Plaintiff alleges, "On or about August 17, 2025, Plaintiff's 2022 Jeep Wrangler was stolen from the secured parking garage at the Property. . . . The theft occurred during the period when the parking garage's security systems were degraded or non-functional due to the Metropolis transition." (Complaint, ¶ 30.) Defendant demurs to the fifth and seventh causes of action in Plaintiff's complaint. Defendant also moves to strike the punitive damages allegations in the complaint. Plaintiff opposes the motions.

#### TENTATIVE RULING:

Defendant's demurrer to the fifth cause of action in Plaintiff's complaint is SUSTAINED with leave to amend. Defendant's demurrer to the seventh cause of action is SUSTAINED without leave to amend.

To the extent it is not moot, Defendant's motion to strike portions of Plaintiff's complaint is GRANTED with leave to amend.

Moving party to give notice.

#### DISCUSSION:

##### Demurrer to complaint

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the Court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

##### Fifth cause of action: nuisance

To state a cause of action for nuisance, Plaintiff must allege that Defendant interfered with the use of Plaintiff's property, that Defendant's interference caused actual damage to Plaintiff's property, and that Defendant's interference with Plaintiff's property was unreasonable. Plaintiff may state a cause of action for nuisance based on Defendant's failure to perform its duties with respect to Plaintiff's property. (Birke v. Oakwood Worldwide (2009) 169 Cal. App. 4th 1540, 1552.) A nuisance must concern "the free use of property, so as to interfere with the comfortable enjoyment of life or property . . . ." (Civ. Code, § 3479.) In support of the cause of action for nuisance, Plaintiff alleges that Defendant "deprived Plaintiff of her safe and comfortable use of the Property and its parking facilities, were and are obtrusive to the free use of the Property, and caused and continue to cause Plaintiff significant damage and injury." (Complaint, ¶ 72.) Specifically, Plaintiff alleges that Defendant caused a nuisance by "creating and permitting a dangerous security gap in the parking garage that enabled the theft of Plaintiff's vehicle." (Complaint, ¶ 73.) Plaintiff does not allege that Plaintiff could not freely use the property at which Plaintiff was a tenant. Instead, Plaintiff alleges that Defendant's security protocols were inadequate. As such, Plaintiff's allegations do not support the cause of action for nuisance. The Court sustains the demurrer to the fifth cause of action for nuisance with leave to amend.

Defendant also argues that Plaintiff cannot state a claim for nuisance because Defendant is not liable for a third party's theft of Plaintiff's vehicle. Defendant relies on Martinez v. Pacific Bell (1990) 225 Cal.App.3d 1557, which is not on point. In that

case, the Court of Appeal held that landowners owe no duty to protect against third party tortious conduct unless the landowners have special relationship with the injured parties. (Martinez v. Pacific Bell (1990) 225 Cal.App.3d 1557, 1567-1568.) Here, however, Plaintiff's landlord engaged Defendant to provide security for the parking garage. As such, Defendant had an existing relationship with Plaintiff. Defendant's liability for the third party's theft of Plaintiff's vehicle therefore depends on whether Defendant owed a duty to Plaintiff under the facts, and, if Defendant owed such a duty, whether Defendant's failure to take certain security precautions breached that duty and whether the breach was a legal cause of the theft. (See Wiener v. Southcoast Childcare Centers, Inc. (2004) 32 Cal.4th 1138, 1145.) Defendant fails to address these factors. As such, Defendant's argument that Defendant is not liable for a third party's theft of Plaintiff's vehicle fails as unsupported.

Seventh cause of action: violation of Civil Code section 1942.5

Civil Code section 1942.5, subdivision (c) makes it unlawful for landlords to retaliate against tenants because they have exercised certain rights. (Civ. Code, § 1942.5, subd. (c).) In opposition to the demurrer, Plaintiff concedes that Plaintiff cannot assert the seventh cause of action against Defendant. (Opposition to Demurrer, p. 10.) Accordingly, the Court sustains Defendant's demurrer to the seventh cause of action without leave to amend. This ruling has no impact on Plaintiff's ability to assert the seventh cause of action against other Defendants.

Motion to strike portions of complaint

Sustaining Defendant's demurrer renders the motion to strike the punitive damages allegations moot. However, to the extent it is not moot, the Court grants the motion to strike the punitive damages allegations with leave to amend.

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the Court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the Court. (Code Civ. Proc., § 436, subd. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) "Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 166, internal citations and footnotes omitted.)

"[T]he imposition of punitive damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others." (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.) "Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees. But the law does not impute every employee's malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the officers, directors, or managing agents." (Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167, internal quotations and citation omitted.)

Plaintiff fails to allege specific facts to show that Defendant's officers, directors, or managing agents acted with malice. Instead, Plaintiff alleges, that Defendant's "actions and/or failure to act were oppressive, fraudulent, and malicious within the meaning of Civil Code section 3294, in that they subjected Plaintiff to cruel and unjust hardship in willful and conscious

disregard of their rights and safety." (Complaint, ¶ 76.) These bare legal conclusions do not support a claim for punitive damages.

Accordingly, Defendant's demurrer to the fifth cause of action in Plaintiff's complaint is SUSTAINED with leave to amend. Defendant's demurrer to the seventh cause of action is SUSTAINED without leave to amend.

To the extent it is not moot, Defendant's motion to strike portions of Plaintiff's complaint is GRANTED with leave to amend.

Plaintiff is to file an amended complaint within 10 days.

Moving party to give notice.

IT IS SO ORDERED.

Dated: September 2, 2026 \_\_\_\_\_

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at [email protected] by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

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